



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

OCT 2 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11912

EXPIRATION DATE: **September 1, 1999**

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Florida Power and Light (FP&L)
St. Lucie Nuclear Plant - Unit No. 1
Jensen Beach, FL
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of two steam generators from the FP&L St. Lucie Nuclear Plant to the Chem-Nuclear Systems, Inc. (CNSI) Waste Management Facility located in Barnwell, South Carolina. This exemption authorizes the steam generators to be classified as surface contaminated objects, class II, and transported as non-specification packages under a transport plan which provides an equivalent level of safety to the packages and procedures specified in Title 49 of the Code of Federal Regulations. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. 49 CFR Part 173.403 in so far as the fixed and non-fixed contamination levels for surface contaminated objects, class II, (SCO-II) are waived for the steam generators specified in the exemption application.
 - b. 49 CFR 173.427(a) in so far as requirement that surface contaminated objects, class II, be transported in authorized packaging is waived and the steam generators specified in the exemption application can be transported in non-specification packages under specified transport plans which provide equivalent safety to the packages and procedures specified.
5. BASIS: This exemption is based on the FP&L's June 19, 1997 application. All documents were submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, surface contaminated object	7	UN 2913	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:a. PACKAGING -

1. Under the provisions of this exemption, the steam generator and its personnel barrier are considered to be a non-specification package providing an equivalent level of safety to the packaging authorized under Title 49 of the Code of Federal Regulation.

2. The contamination levels and radionuclides present on each steam generator shall be consistent with the levels identified in FP&L's application.

3. To maximize radiation protection, each steam generator will be prepared for shipment by welding or bolting shut all nozzles, instrument penetrations and mechanical enclosures using closure plates. After these preparations have been completed, the outer shell of the steam generator shall be painted.

4. All lifting mechanisms will be removed or rendered inoperable

b. OPERATIONAL CONTROLS -

1. The steam generators will be shipped individually and will be consigned as exclusive use.

2. All controls, provisions and routes specified in Chem-Nuclear Systems, Inc. document entitled "Transportation and Emergency Response Plan for St. Lucie Unit 1 Steam Generator Project", Project No. 46621, dated June 11, 1997 shall be followed.

- c. MARKING - Package shall be plainly and durably marked "DOT-E 11912" in accordance with 49 CFR 172.301(c). In accordance with 49 CFR 173.427(a)(6), the package shall must be marked "Radioactive - SCO" and, if appropriate, package must also be stenciled with the letters "RQ".
8. SPECIAL PROVISIONS: The steam generator shall be marked, labeled, and placarded in accordance with the provisions identified in 49 CFR 173.427(a).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
10. MODAL REQUIREMENTS:
- A copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

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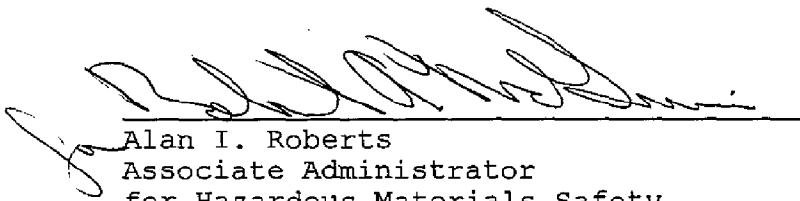
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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

OCT 2 1997


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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